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Apostolic Letter in the form of Motu Proprio Tredecim Anni (August 6, 1982)

APOSTOLIC LETTER IN THE FORM OF MOTU PROPRIO

TREDECIM ANNI

HIS HOLINESS POPE JOHN PAUL II

Already thirteen years have passed since our predecessor Paul VI , of happy memory, following the voting of the Synod of Bishops (cf. Discourse in the Consistory of 28 April 1969, AAS 61 [1969] 431-32), instituted the International Theological Commission. During these thirteen years, the scholars of sacred theology who have been called to this office have worked with great diligence and prudence and have offered the excellent fruits of their work. Therefore the Supreme Pontiff Paul VI and also we ourselves have received them willingly in order to give to them our paternal exhortation and manifest to them our gratitude for their studies and their efforts, a great part of which have already been noted, having been published upon the wish of Paul VI.

In 1969 the statutes of the International Theological Commission were approved ad experimentum (cf. AAS 61 [1969] 540-41). Now the time has arrived to give to these statutes a stable and definitive form, taking into account the experience which has been acquired up until this date, so that the Commission may be able to carry on better the task which has been entrusted to it. This task was expressly described by Paul VI in the discourse which he held during the first plenary session, affirming that this new institution was established "in order to offer its help to the Holy See and especially to the Sacred Congregation for the Doctrine of the Faith" (cf. AAS 61 [1969] 713f).

In reality, Peter and the other apostles, as well as their successors in sacred Tradition - and that is the Roman Pontiff and with him all the bishops of the Church - have received, in an absolutely singular way, the duty and the responsibility of the authentic Magisterium, in conformity with the command of Jesus: "Go therefore and teach all nations, baptizing them in the name of the Father and of the Son and of the Holy Spirit, teaching them to observe all that which I have commanded you. Behold, I am with you all days, even until the end of the world" (Mt 28:19-20). The Second Vatican Council, especially in the Dogmatic Constitution

Lumen gentium (III), in the footsteps of the entire tradition of the Church, calls these tasks by the name of charisms, which confer to it strength, efficacy, and authenticity.

Still, this specific office has need of the study and of the efforts of theologians, from whom, according to the words of the same Paul VI, one expects "a sure help...in fulfilling the office which has been entrusted by Christ to his apostles with the words: 'Go and teach all nations'" (AAS 61 [1969] 715). It is our wish that this help be given by the members of the International Theological Commission in a distinct and almost "institutional" way. They in fact, coming from different nations and having to deal with the cultures of different peoples, know better the new problems, which are like ancient problems with a new face, and therefore they can also better appreciate the aspirations and the mentality of the men of today. Therefore, they can be a great help in giving to the urgent problems today a response that is more profound and more consonant according to the norm of the faith revealed by Christ and handed down through the Church.

Therefore, after having considered everything attentively, motu proprio and with our apostolic authority we establish new statutes for the International Theological Commission and we order the following:

1. It is the duty of the International Theological Commission to study doctrinal problems of great importance, especially those which present new points of view, and in this way to offer its help to the Magisterium of the Church, particularly to the Sacred Congregation for the Doctrine of the Faith to which it is attached.

2. The President of the International Theological Commission is the Cardinal Prefect of the Sacred Congregation for the Doctrine of the Faith, who, however, in case of necessity and for individual sessions may delegate another moderator.

3. The International Theological Commission is made up of scholars of the theological sciences of different schools and nations; they should be eminent for their science, prudence, and fidelity toward the Magisterium of the Church.

4. The members of the International Theological Commission are appointed by the Supreme Pontiff, to whose judgment the Cardinal Prefect of this Sacred Congregation for the Doctrine of the Faith will make proposals, after having listened to the episcopal conferences.

Such members are appointed for five years, after which they may be reappointed. They should not number more than thirty, except in particular cases.

5. The General Secretary of the International Theological Commission, upon the proposal of the Cardinal President of the same Commission, is nominated for five years by the Supreme Pontiff and is part of the advisors of the Sacred Congregation for the Doctrine of the Faith. At the end of the fifth year, he may be reappointed.

It is advisable that the Cardinal President, before suggesting to the Supreme Pontiff the names of those persons suited for this office, consult as much as possible the members of the Commission. It is the specific task of the General Secretary to coordinate the work and to spread the written works of the same Commission during the sessions, as well as before and after the sessions.

6. A vice secretary is nominated by the Cardinal President. He helps the General Secretary in his ordinary work and he has special care of the technical and financial aspects.

7. The plenary session of the International Theological Commission is called at least once a year, unless contrary circumstances impede it.

8. The members of the International Theological Commission may be consulted also in writing.

9. Questions and subjects to be submitted for study are established by the Supreme Pontiff or by the Cardinal President. They may also be proposed by the Sacred Congregation for the Doctrine of the Faith, by other departments of the Roman Curia, by the Synod of Bishops, by episcopal conferences. However, what is prescribed in no. 136 of the apostolic constitution Regimini ecclesiae universae must be observed.

10. In order to prepare for the study of particular questions, the Cardinal President establishes special subcommissions comprised of members who are especially competent in the matter to be studied.

The work of these subcommissions is guided by a member chosen by the Cardinal President so that, with common agreement of the General Secretary, he may conduct the preparation of the work of the plenary session. These subcommissions ordinarily should be made up of at least ten members, and for a special and brief session they may meet outside of Rome.

Other experts may be consulted, even non-Catholics. But those who are called for this consultation do not become members of the International Theological Commission.

Having completed the study and at the end of the fifth year, the sub-commissions cease from their task, but they may be nominated or renewed for another five years.

11. The conclusions which the International Theological Commission reaches, whether in the plenary session or in the special subcommissions, as also, if it be judged opportune, the views of individual members, should be submitted to the Supreme Pontiff and should be given to the Sacred Congregation for the Doctrine of the Faith.

12. Documents which have been approved by the majority of the members of the International Theological Commission may also be published on condition that there is not any difficulty on the part of the Apostolic See.

Texts which have been approved only generically may be published as personal works of the members of the International Theological Commission, but they do not in any way engage the responsibility of the Commission. This is all the more so in the case of preparatory reports or views of external experts. These different levels of responsibility should be clearly evident in the presentation of the texts.

13. The members of the International Theological Commission, for as much as regards the subject matter that has been treated by the Commission and taking into account their nature and importance, shall maintain complete secrecy, conforming themselves to the existing norms concerning the so-called professional secret.

Matters which regard the collaboration with the Sacred Congregation for the Doctrine of the Faith, whether collectively or individually, according to the nature of the things are covered by the secrecy proper to this Congregation, that is to say pontifical, according to what is written in the instruction regarding this secrecy (cf. AAS 66 [1974] 89-92).

We decree that all that which is established by the present letter motu proprio shall take effect with force of law beginning from the first of October of the current year, notwithstanding anything contrary.

Given in Rome, at Saint Peters, 6 August 1982, feast of the Transfiguration of our Lord Jesus Christ, fourth year of our pontificate.

JOHN PAUL II

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